

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 14, 2018

Honorable Barry Taylor
Judge of the Superior Court
County of Los Angeles
6230 Sylmar Avenue
Van Nuys, CA 91401

Re: Pulido, Robert
CDC No.: T55812
Case No.: LA037430-01
Date of Sentence: 5/06/2002

Dear Honorable Barry Taylor:

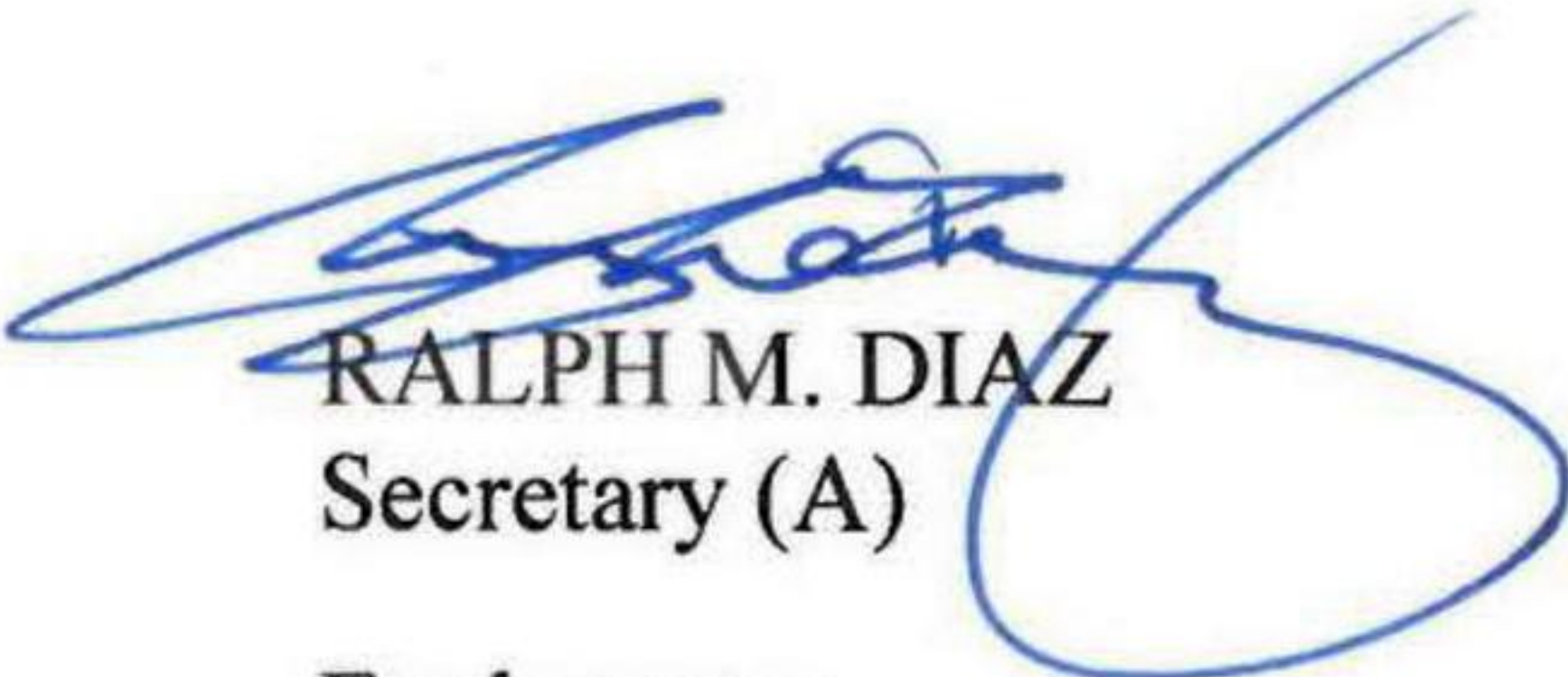
The purpose of this letter is to provide the court with authority to resentence Robert Pulido pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Pulido was sentenced in 2002, and was convicted of section 245, subdivision (A)(1), ASSLT W/A DEADLY WPN. The trial court sentenced inmate Pulido on 5/06/2002. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Pulido's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Pulido's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

T55812

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, NORTHWEST DISTRICT ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT:		
PEOPLE OF THE STATE OF CALIFORNIA VS. DEFENDANT: PULIDO, ROBERT AKA: CII#: A11032153 BOOKING#: 6765731		DOB: 05-21-82 LA037430-01 -B -C -D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ NOT PRESENT ☒ AMENDED ABSTRACT
DATE OF HEARING 05-06-02	DEPT. NO. NW E	JUDGE BARRY TAYLOR
CLERK M. FALCON	REPORTER L. ROESSELL	PROBATION NO. OR PROBATION OFFICER X1802582
COUNSEL FOR PEOPLE B. SILVERMAN		COUNSEL FOR DEFENDANT G. CROWTHER DPD ☐ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 6)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS	MOS
01	PC	664/187A	ATTEMPTED MURDER	2001	02-11-02			X	U							9	0
03	PC	245(A)(1)	ASSLT W/A DEADLY WPN	2001	02-11-02			X	U	X						(4)	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
01	12022.53(D)PC	20							20 0
03	12022.7(A)	(3)	186.22(B)(4)	(10)					(13) 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667(b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME:

29 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

(Continued on reverse)

PEOPLE OF THE STATE OF CALIFORNIA DEFENDANT: PULIDO, ROBERT			
LA037430-01	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):
- a. RESTITUTION FINE of: \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5.
- b. RESTITUTION FINE of: \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
- c. RESTITUTION of: \$ _____ per PC 1202.4(f) to ☐ victim(s)* ☐ Restitution Fund
 (*List victim name(s) if known and amount breakdown in item 11, below.)
- (1) ☐ Amount to be determined.
- (2) ☐ Interest rate of: _____ % (not to exceed 10% per PC 1204.4(f)(3)(F)).
- d. ☐ LAB FEE of: \$ _____ for counts: _____ per H&SC 11372.5(a).
- e. ☐ DRUG PROGRAM FEE of: \$150 per H&SC 11372.7(a).
- f. ☐ FINE of: \$ _____ per PC 1202.5.

10. TESTING
- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify): _____
- b. ☐ DNA pursuant to ☐ PC 290.2 ☐ other (specify): _____

11. Other orders (specify):

12. Execution of sentence imposed
- a. ☒ at initial sentencing hearing.
- b. ☐ at resentencing per decision on appeal.
- c. ☐ after revocation of probation.
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify): _____

13. CREDIT FOR TIME SERVED		TOTAL CREDITS		ACTUAL		LOCAL CONDUCT	
CASE NUMBER							
LA037430-01	-A	522		454		68	4019
							2933.1
	-B						4019
							2933.1
	-C						4019
							2933.1
	-D						4019
							2933.1

DATE SENTENCE PRONOUNCED: 05-06-02	SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC
---------------------------------------	---

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify): _____

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE <u>G. Sarao</u> D.C. III	DATE 03-04-03
--	------------------